LOMURRO, MUNSON, COMER, BROWN & SCHOTTLAND, LLC
RICHARD LOMURRO, ESQ.
Monmouth Executive Center
4 Paragon Way, Suite 100
Freehold, New Jersey 07728
(732) 431-4043
Attorney for Defendant,
S. Bradley Mell
New Jersey Attorney ID #015072007

B.B., Plaintiff, v. S. BRADLEY MELL, KIMBERLY RUGGLES MELL, and W.H. MELL ASSOCIATES, INC.; GULFSTREAM CM, LLC, GULSTREATM GM, L.L.C., AERO CARE SERVICES, L.L.C. Defendants.	SUPERIOR COURT OF NEW JERSEY LAW DIVISION ESSEX COUNTY Docket No: ESX-L-7200-19 Civil Action **CERTIFICATION OR RICHARD LOMURRO IN SUPPORT OF MOTION TO PERMIT COUNSEL FEES AND BILLS OWED TO BE PAID FROM MONEY HELD IN ESCROW**

RICHARD P. LOMURRO, of full age, hereby certifies as follows:

1. I am an attorney at law of the State of New Jersey and partner with the Lomurro Law Firm, attorneys for Defendant Bradley Mell.

2. My firm was retained on an hourly basis to defend Mr. Mell. (See retainer agreement attached as Exhibit A).

3. An initial fee of $10,000 was paid to begin representation. When that retainer was used up, Mr. Mell agreed to replenish the full $10,000 retainer, and so on and so forth throughout his representation in this matter by my firm.

4. The money Mr. Mell agreed to use to replenish his retainer

was money due to him each month from Gulf Stream. That money has since been Ordered held in escrow by Your Honor.

5. As Your Honor is aware, this case has been heavily litigated over the past three months. Mr. Mell's initial retainer was fully depleted.

6. My firm has been unable to obtain a replenished retainer due to Your Honor's order.

7. My firm's fee to date is $24,341.50. $10,000 has been paid. **Mr. Mell currently owes a total of $14,341.50 as of February 3, 2020.** (See matter invoice and paid receipt attached as Exhibit B).

8. It is respectfully requested that Your Honor order **$14,341.50** to be paid from the money held in escrow by Gulf Stream to the Lomurro Law Firm for the outstanding legal fee owed to my firm by Mr. Mell.

9. If is further requested that Your honor order monthly payments of $7,500 to be made to my firm for future fees. If there is any excess at the end of the matter, my firm will issue a check back to the escrow account for that amount.

10. Mr. Mell also has monthly bills that are being paid by his monthly income from Gulf Stream. They are as follows:

    a. Chatham Storage. $986.29 a month, past due $2,006.58. **Total amount due- $2,992.87.** (See storage bill attached as Exhibit C).

b. Mr. Mell's daughter's credit card bill. **Total Amount Due- $1,019.** This bill varies month to month. (See credit card bill attached as Exhibit D).

c. Mr. Mell's car payment. $1,946.97 a month. Past due $3,893.94. **Total amount due- $3,893.94.** (See car bill attached as Exhibit E).

11. It is respectfully requested that Your Honor order that the past due bills be paid out of the money held in escrow from Gulf Stream.

12. It is further requested that Your Honor allow a monthly payment to be made to my firm's trust account to pay the monthly bills for storage, credit card and car payments in the amount of **$5,000.00.** My firm will hold any excess in trust to be paid back to the escrow account at the end of the matter.

13. Finally, the money held in escrow represents income to Mr. Mell and taxes must be paid on that money. It is respectfully requested that arrangements be made each month for the taxable portion of that money to be portioned into a separate account and be paid quarterly to the IRS by Mr. Mell's accountant or attorney in fact.

LOMURRO, MUNSON, COMER, BROWN & SCHOTTLAND, LLC
Attorneys for Defendant, S. BRADLEY MELL

BY: _____
RICHARD P. LOMURRO

DATED: February 3, 2020

EXHIBIT A

LOMURRO, MUNSON, COMER, BROWN & SCHOTTLAND, LLC
ATTORNEYS AT LAW
MONMOUTH EXECUTIVE CENTER
4 PARAGON WAY
SUITE 100
FREEHOLD, NEW JERSEY 07728

(732) 414-0300

Website:
WWW.LOMURROLAW.COM

Richard P. Lomurro
L.L.M. in Trial Advocacy
Direct Dial – (732) 414-0309
NJ ATTORNEY ID NUMBER 15072007

rlomurro@lomurrofirm.com
Reply to Freehold
Fax – (732) 431-4043

RETAINER AGREEMENT
PLEASE READ ENTIRE AGREEMENT CAREFULLY

CLIENT: **Bradley Mell (Retainer to be executed by his power of attorney)**

DATE: **12/26/19**

MATTER: **B.B. v S. Bradley Mell**

This retainer agreement sets forth the agreement between the Law Firm of Lomurro, Munson, Comer, Brown and Schottland, LLC, and You concerning the matters referenced above.

1. Representation and Retainer.

This firm will represent you, in regard to the above referenced matter, and you will pay us an initial retainer of $____10,000____. **This initial payment shall be for the filing of an answer and full review of file as to discuss long term strategy.** This retainer shall be credited against all time expended by us against all costs incurred on your behalf. **$___10,000_____** of the retainer will be held in our trust account to be applied against your last bill or towards any interim bills which are more than sixty (60) days overdue. In the event you determine you would like any additional work after the scope of this matter is completed (including but not limited to representation in litigation), you must notify us of your determination in writing and an additional retainer must be paid to the firm.

2. Legal Fees.

Our fee is based upon the amount of time we devote to your case. It is impossible to determine in advance the amount of time that will be needed to complete your case. All services rendered to you will be billed to the nearest 1/10th of one hour (6 minutes). Billable time will

include all time spent on your case including but not limited to the initial review of the file, cataloging of the file, conferences, email communications, time spent on telephone calls with you and other individuals involved in your legal affairs, consultations with other attorneys both within our firm and outside of our office, pretrial discovery of data, pleadings, negotiations, legal research, court time and travel to and from locations away from our office.

The hourly rates to be charged to you for services rendered by this firm are as follows: **$400.00 per hour for Richard P. Lomurro, Esq**. When it appears to be appropriate to use other attorneys in the firm with similar or lower billing rates or paralegals, we will attempt to do so. However, we reserve the right to assign any attorney in the firm to your matters depending on ability and availability. The rates of other attorneys in our firm who may be assigned to this matter range from $170 to $450 per hour. We presently bill our paralegals' time between $75 and $150 per hour, and Law Clerks' time is billed at $140.00 per hour. We normally review each attorney's hourly time rates twice during a year, and, where appropriate, adjust it to reflect increases in experience and inflation. At the end of each year, the hourly rates are subject to an increase of up to 10% per year, every year. We will notify you of any increases.

We make no representation or guarantee as to the ultimate outcome of this matter. We do not make any representations as to the total amount which you will incur for attorneys' fees and disbursements, since those amounts for the most part depend on the time and efforts which we are required to expend on the case. Those are in turn dependent on a number of factors, including the complexity and nature of the issues that develop during the course of the matter. It is therefore important that you understand that if at any time we should give estimates as to anticipated attorneys' fees or disbursements, they are no more than that, merely estimates. We will, of course, attempt to give you our best estimate at any given point in time.

3. <u>Disbursements.</u>

You will be responsible for the payment of any expenses which we incur on your behalf, including the reimbursement of all cash disbursements paid by us for your account. Such expenses and disbursements may include, but are not limited to, charges for long distance telephone calls, photocopying, travel, courier or overnight delivery, extraordinary secretarial or clerical time which may be required by the circumstances, court fees and court reporters. Accrued disbursements paid by us will be included in each bill we send you. In cases where invoices for disbursements arrive after the close of a billing period, they will be included in the next subsequent bill. We reserve the right to send you vendor invoices for expenses incurred by us on your behalf which exceed $100.00 with a request that you pay such invoices directly. Invoices for significant printing and copying jobs performed outside our office and fees of stenographers, expert witnesses, consultants, accountants and appraisers often fall

in this category. Such invoices are reviewed and approved by us and then forwarded to you promptly for direct payment. Since we often have ongoing professional relationships with the persons who render such services, we request that you pay such invoices promptly and send us notice of your payment.

4. Additional Retainer.

We may require of you, at our discretion to pay an additional retainer(s) or provide other security for our fee if monthly bills are not paid on time.

5. Collection Fees.

In the event this firm needs to proceed with collection of any outstanding fees and costs due to the Firm under this agreement, by way of communications with you, fee arbitration, petition for a charging lien or lawsuit, you agree to be responsible for and to pay all reasonable attorney's fees (including payment of our normal hourly rates if we represent ourselves), interest and costs. Any information contained or provided herein may be used to collect any outstanding debt owed to this firm.

6. Entire Agreement.

This Agreement contains all of the terms of our financial agreement with you and can only be modified by written document signed by both parties.

7. File Retention.

You should be aware of our policies with regard to file retention. Once your case is finished, our file will be closed. We will contact you before your file is destroyed. However, important documents are stored electronically. If there is anything in our file which you need or want preserved, you must ask us for it at the conclusion of your case or 30 days after notification to you.

8. Right to Terminate.

You may terminate your relationship with this firm at any time you wish, for any reason whatsoever. Conversely, we reserve the right to withdraw as your attorneys, subject to our obligations under the Rules of Professional Conduct. You shall still be obligated for the payment of our fees for services rendered and expenses advanced by us on your behalf prior to any such termination or withdrawal. If our bills are not paid when due, you authorize us to withdraw as your counsel and you agree to promptly engage other counsel to represent you.

9. Arbitration Agreement.

(a) Any and all differences and disagreements or disputes which may arise between the parties, including but not limited to disputes regarding this retainer agreement or in any way related to the legal services provided hereunder or the law firm's representation of you on account of any matter shall be settled by arbitration in accordance with the provisions set forth in the New Jersey Arbitration Act N.J.S.A. 2A: 24–1 et seq. and arbiter shall be chosen by the consent of the parties or in accordance with N.J.S.A. 2A: 24–5, the fees for which shall be an issue to be determined by the arbitrator. The matters to be settled by an arbitrator include any dispute regarding fees wherein the Fee Arbitration Committee established by the New Jersey Court Rules refuses to accept jurisdiction or such difference involves a matter other than fees and costs, you or the law firm may submit the dispute to binding arbitration.

The decision of such arbitration shall be binding on both parties, and a judgment based on any of the arbitration award shall be entered pursuant to paragraph (b).

(b) Exclusive jurisdiction over entry of a judgment on any arbitration award rendered pursuant to paragraph (a) over any dispute regarding the arbitration award in this agreement or any legal services provided hereunder, when the action or suit arises therefrom, shall be venued in the Superior Court of New Jersey, Monmouth County. The parties expressly subject themselves to the personal jurisdiction of said court for the entry of any such judgment and for the resolution of any dispute, action or suit arising in connection with the entry of such judgment.

(c) Signing of this agreement will constitute your knowledge that you have an absolute right in the first instance and an obligation under this agreement to submit any fees disputes between you and the law firm to the appropriate Fee Arbitration Committee for resolution, and should that method not be available, you or the law firm have the obligation to submit any fee or other dispute to binding arbitration as set forth in this section instead of in place of submitting such issues for resolution by the court. Signing of this agreement will be deemed your consent to the methods of alternate dispute resolution set forth in this section, and constitutes a waiver on your part and on the part of the law firm to have such disputes resolved by a court which might include having the matter determined by a jury.

10. Legally Binding. PLEASE NOTE: This is a legal binding contract between you and the firm. Before signing it, please read it carefully and be sure you understand all of the contents. This agreement contains all of the terms of our financial arrangement with you and can only be modified by a written document signed by both parties.

THIS AGREEMENT IS A LEGALLY BINDING CONTRACT. BY SIGNING THIS AGREEMENT, YOU ACKNOWLEDGE THAT YOU WILL BE BOUND BY ITS TERMS. YOU ALSO ACKNOWLEDGE THAT I HAVE ASKED YOU TO ASK ME YOUR QUESTIONS ABOUT IT, AND THAT I HAVE ANSWERED YOUR QUESTIONS SO THAT YOU UNDERSTAND THIS CONTRACT. BY SIGNING THIS AGREEMENT, YOU

ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTAND THE AGREEMENT AND AGREE TO ITS TERMS.

BY SIGNING THIS AGREEMENT, YOU SPECIFICALLY AGREE TO THE ARBITRATION PROVISIONS SET FORTH IN SECTION 11. IN PARTICULAR, THE WAIVER OF THE RIGHT TO SUBMIT ANY DISPUTE BETWEEN YOU AND THE LAW FIRM TO A COURT OF LAW.

LOMURRO, MUNSON, COMER, BROWN and SCHOTTLAND, LLC

By: _____ Dated: _____
RICHARD P. LOMURRO

By: _____ Dated: 11/26/19
MICHAEL SIMON SCOTT

SOCIAL SECURITY NUMBER: _____

DATE OF BIRTH: _____

E-MAIL ADDRESS: Simon6@optonline.net

EXHIBIT B

Client: 000000035014-Mell, S. Bradley
Matter: RL1222-B.B. v. S. Bradley Mell, et al

Bill Number	Code	Bill Date	Type	Amount	A/R Balance Due	Comment
20495	RL1222	1/13/2020	Bill	$14,531.50	$4,531.50	From bill #20495
20621	RL1222	2/3/2020	Bill	$9,810.00	$9,810.00	From bill #20621
				SUM=$24,341.50	SUM=$14,341.50	

Lomurro, Munson, Comer, Brown & Schottland LLC

Ledger History Receipts

1/1/1900 - 2/29/2020

Date	Transaction	Total		
Matter Totals		$0.00	Current PrePaid Balance	
Client Totals		**$0.00**		
035014 Mell, S. Bradley				
RL1222 B.B. v. S. Bradley Mell, et al				
12/13/2019	PPD Receipt	$10,000.00		
Matter Totals		$10,000.00	Current PrePaid Balance	$0.00
Client Totals		**$10,000.00**		
None		**$10,000.00**		

EXHIBIT C

From: info@chathamstorage.com
Subject: Notice from Chatham Storage: Special Invoice
Date: January 21, 2020 at 9:13 AM
To: simon6@optonline.net, pcmell1@hotmail.com

Chatham Storage

223 N. Passaic Avenue
Chatham, NJ 07928
(973)635-7100

Invoice	Date: January 21, 2020
S. BRADLEY MELL	Space(s): 1002, 1310

TOTAL AMOUNT DUE
$2,992.87

PAST DUE AMOUNT

Description	Amount
Rent	$1,850.00
Fees	$34.00
Tax	$122.58
Total	$2,006.58

Payment Due On: 2/6/2020

Current Charges:

Description	Amount
Rent	$925.00
Tax	$61.29
Total	$986.29

You also have the option to pay online at http://www.chathamstorage.com/ after first arranging a one time Personal Identification Number (PIN) with the Main Office: (973)635-7100. Thank you.

EXHIBIT D

From: **S. Scott** simon6@optonline.net
Subject: Eliza's Credit Card Bill
Date: January 23, 2020 at 9:33 PM
To: Simon Scott sscott66@me.com

WELLS FARGO

VISA

Account Number **Ending in 2520**
Statement Billing Period **11/27/2019 to 12/27/2019**
Page 1 of 2

WELLS FARGO

Balance Summary

Previous Balance	$591.88
− Payments	$25.00
− Other Credits	$27.28
+ Cash Advances	$0.00
+ Purchases, Balance Transfers & Other Charges	$1,918.05
+ **Fees Charged**	**$0.00**
+ **Interest Charged**	**$22.83**
= New Balance	$2,480.48
Total Credit Limit	$3,500
Cash Advance Limit	$1,750

24-Hour Customer Service:	1-800-642-4720
TTY for Hearing/Speech Impaired:	1-800-419-2265
Outside the US Call Collect:	1-925-825-7600
Wells Fargo Online®:	wellsfargo.com

Send General Inquiries To:
PO Box 10347, Des Moines IA, 50306-0347

Total Available Credit $1,019
Available For Cash Advances $1,019

Account Number	4465 4002 0098 2520
New Balance	$2,480.48
Minimum Payment	$73.00
Payment Due Date	01/21/2020

00248048000025000000730044654002009825207

Amount Enclosed $

EUZA E MELL 650159
C/O BRAD MELL MSP 3812
PO BOX 835
FAIR HILLS NJ 07931-0835

WELLS FARGO CARD SERVICES YKG
PO BOX 77053 S7
MINNEAPOLIS MN 55480-7753

Check here and see reverse for address and/or phone

EXHIBIT E

WELCOME, STEVEN

Overview

View Inbox(0)

NEXT PAYMENT DUE

Past Due

Amount Due
$3,893.94

2018 750i xDrive
Lease Account |
4002828750

MAKE A PAYMENT

PREVIOUS PAYMENT

$1,946.97

Paid on Nov 22, 2019

2018 750i xDrive
Lease Account |
4002828750

VIEW STATEMENT

QUICK LINKS

Payoff Information

Account Details

Paperless Statements & Notifications

Manage Automatic Recurring Payments

Recent Activity

Account Activity

Select another vehicle

2018 750i xDrive

Lease Account | 4002828750

HELP CENTER

Automatic Payments

Paperless Billing

Mileage Management

MILEAGE USAGE TARGET

33,750 mi of 45,000 mi

LEASE PROGRESS

27 months of 36 months